

		showed Plaintiff pornographic images and videos on his cell phone, and sent photographs of himself at a strip club to Plaintiff's personal cell phone. (Compl. ¶ 28.) These allegations sufficiently allege conduct that subjected Plaintiff to subjects to cruel and unjust hardship in conscious disregard of his rights. Defendant further contends Plaintiff does not identify the officer, director, or managing agent of the corporation who had advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice. As set forth above, Plaintiff alleges Lujan and Hazel were management-level employees with Defendants. (Compl. ¶¶ 27, 28.) “[T]o demonstrate that an employee is a true managing agent under [Civil Code] section 3294, subdivision (b), a plaintiff seeking punitive damages would have to show that the <i>employee exercised substantial discretionary authority over significant aspects of a corporation's business.</i>” [Citation.] “The scope of a corporate employee's discretion and authority under our [managing agent] test is therefore a <i>question of fact</i> for decision on a case-by-case basis.” (<i>Davis v. Kiewit Pacific Co.</i> (2013) 220 Cal.App.4th 358, 366 [emphasis in original].) Plaintiff's allegations are sufficient at the pleading stage. Whether Lujan and Hazel are actually managing agents for purposes of punitive damages involves a factual determination that is inappropriate for purposes of a motion to strike. Accordingly, the Court DENIES Defendant BEC Electric, Inc. dba Service Lion's Motion to Strike Portions of Plaintiff's Complaint.
7.	DOE VS. IHERB, LLC 2025-01505285	MOTION TO STRIKE Defendants iHerb and Trent Kruse's Motion to Strike Plaintiff's Jane Doe Designation is CONTINUED to July 7, 2026, to be heard concurrently with Plaintiff's Motion to Proceed Pseudonymously and for Entry of a Protective Order. The Court finds it would be most efficient to address the issues raised in these motions together.
8.	ZANDI VS. CALVARY CHAPEL OF COSTA MESA 2024-01405013	1. MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Plaintiff Felicia Zandi's Motion to Allow Additional Time for Defendant Jacob Harman's Deposition, joined by Defendants Calvary Chapel of Costa Mesa and Brian Brodersen, is GRANTED. Harman is ORDERED to sit for a second session of his deposition beyond the seven hours authorized without a court order in Code of

		Civil Procedure, section 2025.290(a). Plaintiff is permitted to depose Harman on matters related to the documents produced after the first session of the deposition and pursuant to the deposition notice. Plaintiff's additional examination is limited to 3 hours. Calvary Chapel and Brodersen are permitted to depose Harman on any matter, however, their examination is limited to 2 hours. Plaintiff's request for sanctions is DENIED. "Except as provided in subdivision (b), or by any court order, including a case management order, a deposition examination of the witness by all counsel, other than the witness' counsel of record, shall be limited to seven hours of total testimony. The court shall allow additional time, beyond any limits imposed by this section, if needed to fairly examine the deponent or if the deponent, another person, or any other circumstance impedes or delays the examination." (Code Civ. Proc., § 2025.290(a).) Additional time is required to fairly examine Harman. Plaintiff's counsel was unable to examine Harman regarding the 2,000 pages of documents produced after the deposition. Harman's arguments regarding counsel having the documents from a different case and choosing to examine Harman on matters he claims are less important are not persuasive. There is no authority which abrogates a party's discovery responsibilities based on discovery from a separate case. Further, without the responsive documents, Plaintiff's counsel was unable to determine the import of each topic and whether he should reserve time to question Harman on undisclosed documents. Additionally, Calvary Chapel and Brodersen were unable to ask any questions during the deposition. Thus, the Court finds additional time is warranted under Code of Civil Procedure, section 2025.290(a). The Court finds sanctions inappropriate. First, this motion is not a motion to compel answers or production of documents. Harman had already produced documents prior to Plaintiff filing her motion. Further, the Court declines to exercise its discretion to impose monetary sanctions pursuant to Section 2023.010.
9.	BEVERAGE VISIONS, LLC VS. CUA	MOTION FOR ATTORNEY FEES The Motion for Attorney Fees by Defendant in Intervention Beverage Visions, LLC against Plaintiff in Intervention Russell Geyser is GRANTED. Movant seeks attorney fees based on the Court's order granting their anti-SLAPP motion to strike the Complaint in Intervention of Russell Geyser. On 12/9/25, the Court granted movant's anti-SLAPP motion on the grounds that the alleged conduct related to settlement of a prior

		dispute was protected speech and Geyser failed to demonstrate a probability of prevailing because the litigation privilege applied to his allegations. <u>Legal Standard:</u> Code of Civil Procedure section 425.16(c)(1) provides, “Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5.” However, a party who prevails on an anti-SLAPP motion which is only an “illusory” or “minimal and insignificant” victory with no “practical effect” is not entitled to recover their attorney fees. (See <i>Lin v. City of Pleasanton</i> (2009) 176 Cal.App.4th 408, 425–426; <i>Moran v. Endres</i> (2006) 135 Cal.App.4th 952, 954–955.) <u>Application:</u> Here, movant prevailed on its anti-SLAPP motion, which had a substantial practical effect – dismissal of the entire Complaint in Intervention against it. Movant seeks attorney fees of \$10,948 plus filing/service fees of \$119.40. The request is based on counsel’s hourly rates between \$540 and \$660/hour, which the Court finds is reasonable for purposes of the subject motions. Movant’s attorney fees request reflects a reasonable amount of time spent on the anti-SLAPP motion and the present motion (1.5 hours). The motion is unopposed. The motion is granted in the amount of \$11,067.40.
10.	SCHWARTZ VS. BRUNSWICK CORPORATION 2023-01331323	MOTION FOR ATTORNEY FEES Plaintiff Martin Schwartz’s motion for an award of attorneys’ fees and costs is GRANTED as modified. The court declines to rule on the Defendant’s evidentiary objections to evidence submitted by Plaintiff and Plaintiff’s evidentiary objections to evidence submitted by Defendant on the grounds they are unnecessary to the disposition of the Motion. <u>Entitlement to Attorneys’ Fees:</u> Plaintiff moves for attorneys’ fees pursuant to Civil Code section 1794, subdivision (d) which states: “If the buyer prevails in an action